

SENATE JOINT RESOLUTION 346

By Gardenhire

A RESOLUTION relative to the regulation of Kratom.

WHEREAS, an estimated 1.7 million Americans aged twelve and older currently use Mitragynine, or Kratom, to self-treat various medical conditions; and

WHEREAS, Kratom mimics the opioids currently problematic for abuse, addiction, and lethal side effects, yet the substance can be legally purchased by adults in Tennessee; and

WHEREAS, popularly referred to as "gas station heroin," Kratom is sold in capsule, powder, and liquid extract form at convenience stores across the State and can often be found between the gum and drink selections; and

WHEREAS, the myriad formulations of Kratom have various concentrations and doses and are not accompanied by specific information about ingredients, purity, dosing associated with various uses, drug interactions, or any warnings regarding the documented cases of overdose, hepatic (liver) failure, and possible death; and

WHEREAS, from 2021 to 2023, more than 2,000 fatal kratom-related overdoses were recorded from forty reporting states and Washington, D.C., and reports of Kratom-only fatal overdoses are now recorded by medical examiners; and

WHEREAS, Kratom is promoted to have a wide range of benefits and very few side effects, but this "herbal dietary supplement" is actually banned in two nations where the native plant is grown, is a controlled substance in at least sixteen countries, and is banned altogether in Germany, Australia, and Sweden; and

WHEREAS, several states are beginning to regulate the storage, distribution, and sale of Kratom, while others have outright banned it in any form; and

WHEREAS, states choosing to ban Kratom have added the substance to their lists of controlled substances as a scheduled drug to reflect its abuse, addiction potential, and reported side effects; and

WHEREAS, the tragic consequences of the unregulated sale of this substance are demonstrated by the untimely death of Matthew Davenport, who died on March 18, 2024, from a lethal interaction between his doctor-prescribed medications and Kratom; and

WHEREAS, Matthew was a kind and thoughtful young man, and although he struggled with depression, anxiety, and alcohol addiction, he had found support in rehab and a sober-living home, where he had been thriving; it is indeed a tragedy that his life was cut short by a harmful, yet unregulated, substance that he purchased as easily as breath mints at a convenience store; and

WHEREAS, Karen Davenport, his mother and a nurse practitioner, is now leading the fight to heavily regulate or outright ban the sale of Kratom in Tennessee to end such preventable tragedies and spare other parents, spouses, and children the unrelenting devastation of losing a loved one in such a senseless way; and

WHEREAS, Tennessee has led the nation with its careful development of capped morphine prescriptions, a database to stop doctor shopping, and the closure of pill mills, yet we still allow the sale of an unregulated compound that is promoted as all-natural, effective, and safe but in actuality is proving to be addictive and even deadly; and

WHEREAS, our families and communities deserve protection from harmful substances such as Kratom; now, therefore,

BE IT RESOLVED BY THE SENATE OF THE ONE HUNDRED FOURTEENTH GENERAL ASSEMBLY OF THE STATE OF TENNESSEE, THE HOUSE OF REPRESENTATIVES CONCURRING, that we support the strictest State regulation of Kratom or even an outright ban on the sale of Kratom in Tennessee.

